

CITATION: Trench v. Parmat Investments Ltd. et al., 2010 ONSC 1564
COURT FILE NO.: CV-07-2202-00
DATE: 20100312

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: YVONNE TRENCH

Plaintiff

v.

PARMAT INVESTMENTS LTD. operating in business as
MEADOWVALE BINGO, VLM INVESTMENTS INC., 773665
ONTARIO LIMITED and CITY OF BRAMPTON

Defendants

BEFORE: MacKENZIE J.

COUNSEL: Mr. C. Fiske, for the Plaintiff, Moving Party

Mr. F. Costantini, for the Responding non-party, Canada Post

ENDORSEMENT

[1] The plaintiff moves for leave to add Canada Post as a defendant and to amend her statement of claim, pursuant to Rules 5.04(2) and 26.01, respectively.

[2] The motion is dismissed for the following reasons.

[3] The claim arises from a slip and fall incident which occurred on February 20, 2007. At the time of the slip and fall incident (the slip and fall), the plaintiff was attending on a community mailbox placed by Canada Post at the southeast

corner of Fairhill Avenue and Brisdale Drive in the City of Brampton, Ontario. For purposes of the motion, it is not in dispute that the location of the slip and fall was on the boulevard between the paved roadway and the edge of the concrete sidewalk running parallel to the roadway. The slip and fall location faced the community mailbox which rested on a concrete pad on the side of the sidewalk most distant from the roadway. Put another way, the sidewalk lay between the *situs* of the community mailbox and the *situs* of the slip and fall.

[4] It is also not in dispute that the limitation period for the plaintiff's claim is two years, i.e. the second anniversary of the date of the incident.

[5] The plaintiff issued her statement of claim July 10, 2007. The statement of claim was subsequently amended by Order of Kruzick J. dated January 25, 2008. On the same date, the court ordered City of Brampton to be added as a defendant.

[6] The plaintiff framed her claims against the defendants on the basis of searches of title of the realty where the slip and fall occurred. It is common ground that there is nothing in those real estate searches which would indicate the interest of Canada Post in and to the portion of the subject lands on which its community mailbox is situate. It appears that the impetus for seeking to add Canada Post as a defendant arose from a letter dated September 23, 2009

addressed to plaintiff's counsel from counsel for the City of Brampton. The pertinent part of such letter reads as follows:

We once again urge plaintiff's counsel to add Canada Post to this action as it has jurisdiction and/or is an occupier pursuant to the occupier's *Liability Act* of the alleged location of loss.

[7] It is of interest that the writer of the letter in the sentence preceding the above quoted extract states that the "above incident [slip and fall] allegedly took place on a concrete community mailbox platform that was installed and is inspected and maintained by Canada Post". This statement cannot at this stage of the proceedings be accepted as true and accurate: there is evidence, subject to fact-finding, that the slip and fall took place on the boulevard rather than on the concrete community mailbox platform.

[8] However, the plaintiff's position is that a plaintiff herein acting reasonably could not have considered Canada Post as having liability exposure to the plaintiff until her receipt of the September 23, 2009 letter supporting the allegation that Canada Post was a proper party defendant.

[9] The position of the plaintiff is that the two year limitation period would commence on September 23, 2011. The contrary position of Canada Post is that the two year limitation period expired on February 19, 2009. In these circumstances, regard must be had to the applicable law relating to

discoverability in the context of the *Limitations Act*, 2002, S.O. 2002, as amended (the *Act*).

[10] Section 5(1) of the *Act* provides for the discoverability of claims in the following terms:

5(1) The claim is discovered on the earlier of,

- a) the day on which the person with the claim first knew,
 - i) that the injury, loss or damage had occurred,
 - ii) that the injury, loss or damage was caused by or contributed to by an act or omission,
 - iii) that the act or omission was that of the person against whom the claim was made, and
 - iv) that, having regard to the nature of the injury, loss or damage a proceeding would be an appropriate means to seek to remedy it; and
- b) the day on which a reasonable person with the ability then in the circumstances of the person with the claim first ought to have known of the matters referred to in clause (a).

[11] In *Aguonie v. Galion Solid Waste Material Inc.* (1998) 38 O.R. (3d) 161 (C.A.), the discoverability principle is stipulated in the following language:

This principle provides that a cause of action arises for the purpose of a limitation period when the material facts on which it is based have been

discovered, or ought to have been discovered by the plaintiff by the exercise of reasonable diligence: (para. 24).

[12] The case law establishes that the plaintiff has an evidentiary burden to prove that the material facts giving rise to the cause of action are not within her knowledge within two years from the date of issuance of this statement of claim through a lack of due diligence: see *McSween v. Louis*, [2000] O.J. No. 2076 (O.C.A.) and *Findlay v. Holmes*, [1998] O.J. No. 2796 (O.C.A.).

[13] The approach to be taken and dealing with discoverability issues on a motion to add a defendant is found in the observations of Master Dash in *Wong v. Adler*, [2004] O.J. No. 1575, (appeal dismissed, Divisional Court, [2005] O.J. No. 1400):

...the motions court must examine the evidentiary record before it to determine if there is an issue of fact or credibility on the discoverability allegation, which is a constituent element of the claim. If the court determines that there is such an issue, the defendant should be added with leave to plead a limitation defence. If there is no such issue, as for example, where the evidence before the motions court clearly indicates that the name of the tortfeasor and the essential facts that make up the cause of action against such tortfeasor, were actually known to the plaintiff or her solicitor more than two years before the motion to amend, the motion should be refused. If the issue is due diligence rather than actual knowledge, this is much more likely to involve issues of credibility requiring a trial or summary judgment motion, provided of course that the plaintiff gives a reasonable explanation on proper evidence as to why such information was not obtainable with due diligence. That is not to say that such motion could never be denied if the evidence is clear and uncontradicted that the plaintiff could have obtained the requisite information with due diligence such that there is no issue of fact or credibility.

[14] Counsel for Canada Post contends the evidentiary record clearly indicates that the name of the alleged occupier-tortfeasor [Canada Post] and the essential facts that make up the cause of action against such alleged tortfeasor were actually known to the plaintiff or her solicitor more than two years before the proscription date. Counsel submits that the plaintiff alleges she fell while she was retrieving her mail from “mailboxes” not on her own property. Counsel contends that these facts make the presence of Canada Post self-evident: the delivery of mail by Canada Post to community mailbox fixtures is ubiquitous within Canada: see para 22, Canada Post factum.

[15] Canada Post’s position is that the affidavit of the solicitor for the plaintiff fails to list any attempts made by the plaintiff in obtaining information to substantiate an assertion that she was reasonably diligent in ascertaining the involvement of Canada Post in the slip and fall and there is an absence of any explanation as to why the plaintiff’s solicitor was unable to take such steps. Counsel for Canada Post further submits the plaintiff’s motion materials completely fail to address whether the plaintiff ought to have known Canada Post’s involvement and identity in the act or omission giving rise to her claim and, more importantly, what steps that could be characterized as reasonably diligent were taken by the plaintiff or her solicitor to ascertain the identity of Canada Post. Canada Post duly notes the position of the plaintiff that the only explanation for

the plaintiff's failure was it was only on receipt of the September 23, 2009 letter urging the plaintiff (and other parties) to add Canada Post as a defendant to the action that the plaintiff and her counsel took such step. In sum, counsel for Canada Post contends the plaintiff has failed to discharge her evidentiary burden and has not introduced any evidence to establish due diligence or lack of actual knowledge nor has a reasonable explanation with proper supporting evidence as to why information concerning Canada Post's involvement and its community mailbox platforms was not obtainable with due diligence. Canada Post also submits that it has been unduly prejudiced by the plaintiff's lack of due diligence in advancing the claim against it within the two year limitation period and points out that Canada Post has had no fair opportunity to make a timely inspection of the community mailbox in question to investigate the allegations made by the plaintiff.

[16] In response, the plaintiff acknowledges that she was attending the community mailbox, that the slip and fall occurred after she had completed the deposit of her mail in such mailbox and that she has discharged the due diligence obligation by having conducted searches of the realty in question and found no indication of the interest of Canada Post in terms of title issues. Much reliance is placed on the suggestion in the September 23, 2009 letter that Canada Post should be added as a party.

[17] In my view, this suggestion does not relieve the plaintiff from her obligation on the due diligence aspect of her burden on this motion. The motive behind the suggestion in the letter of September 23, 2009 is irrelevant here. I am accordingly not persuaded the plaintiff has discharged her obligation of giving a reasonable explanation on proper evidence as to why information relating to the liability exposure of Canada Post was not obtainable with the exercise of due diligence in this case.

[18] In the result, the plaintiff has failed to discharge her burden to obtain the exercise of the court's discretion in adding Canada Post as a party defendant.

[19] The question of costs of the motion shall be dealt with, in the absence of agreement between the parties, by written submissions not to exceed four pages in length(exclusive of supporting materials), according to the following schedule:

- (a) by Canada Post within 14 business days of the date of issuance of this endorsment;
- (b) response by the plaintiff within 10 business days of receiving the submissions of Canada Post; and
- (c) reply, if any, by Canada Post within 7 business days of receiving the plaintiff's responding submissions.

MackENZIE J.

DATE: March 12, 2010

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